

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Shella Deen, Presiding
Nancy Vasquez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 17, 2026 TIME: 9:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E**

****Please specify the issue to be contested when calling the Court and counsel****

**LAW AND MOTION TENTATIVE RULINGS
9:00 A.M.**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	21CV387145	Myoung Jung Hwang v. Jikhan Jung et al.	Motion to Dismiss Scroll down to Line 1 for Tentative Ruling.
LINES 2 and 3	22CV393993	Winston Arver v. Michael Soon-An Chae et al.	Motion to Set Aside Dismissal and Motion to Strike Plaintiff Winston Arver filed a Motion to Set Aside a Dismissal and a Motion to Strike in <i>pro per</i> . A Substitution of Attorneys was filed in error on December 31, 2025, and has since been rejected by the court as Plaintiff's attorney of record, Attorney Madrid, did not consent to the substitution. As such, Plaintiff Arver is still represented by Attorney Madrid and these motions are not properly before the Court. The motions are DENIED, without prejudice. Opposing party to prepare the formal order.

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 1
Honorable Shella Deen, Presiding**

Nancy Vasquez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 17, 2026 TIME: 9:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 4	24CV440635	Lan Lam v. ESS Prisa II, LLC	Motion to Compel Plaintiff's appearance at deposition Defendant ESS PRISA II, LLC's (erroneously sued as EXTRA SPACE STORAGE) motion for an order compelling Plaintiff Lan Lam to appear for her deposition within 20 days from the hearing of this motion. The motion is brought pursuant to Code of Civil Procedure § 2025.450(a) on the grounds that Plaintiff failed to appear for her properly noticed deposition on December 5, 2025. The motion was accompanied by an appropriate proof of service indicating electronic mail service and mail service to Plaintiff. Defendant requests in the alternative that the case be dismissed. The Court has the authority to compel Plaintiff's deposition considering her ongoing non-appearance. "If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . , the party giving notice may move for an order compelling the deponent's attendance and testimony" (Code Civ. Proc. § 2025.450(a).) Here, Plaintiff has failed to appear for her deposition on December 5, 2025. Plaintiff has not communicated in any way since May 2025, including not serving any objection or request for rescheduling. No opposition to the motion was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. CRC Rule 8.54c. Failure to oppose a motion leads to the presumption that Plaintiff has no meritorious arguments. (See <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal. App. 3d 481, 489.) Moving party meets its burden of proof. Good cause appearing, the motion is GRANTED. Plaintiff shall appear for her deposition at a code compliant location, within 20 days of this order, or on a date and location agreed between the parties. Defendant's request for dismissal of the case is DENIED. Moving party to prepare the formal order.
------------------------	------------	---------------------------------	--